

CONFIDENTIALITY AGREEMENT

This **Confidentiality Agreement** (the “**Agreement**”) is entered into as of the date of the last signature (“**Effective Date**”) by and between [REDACTED] registered in England and Wales under Company No. [REDACTED] and the entity or individual listed in the signature block below (“**Partner**”). [REDACTED] and

Partner are each a “**Party**” and collectively, the “**Parties**.”

1 Introduction. The Parties have entered or propose to enter discussions in order to explore mutually beneficial business opportunities (the “**Purpose**”). In connection with the Purpose, either Party may disclose information of a confidential nature to the other Party which is then referred to as Recipient.

2 Confidential information. As used in this Agreement, “**Confidential Information**” means either Party’s non-public and/or proprietary information that: (a) if disclosed in writing, is labelled as “confidential” or “proprietary”; (b) if disclosed orally, is designated confidential at disclosure; or (c) by its nature and/or the circumstances of its disclosure, should be reasonably considered as confidential.

3 Use of Confidential Information.

3.1 The Recipient shall keep Confidential Information strictly confidential and not disclose such Confidential Information to any third party without the disclosing Party’s prior written consent. The Recipient shall treat such Confidential Information with the same degree of care that it treats its own Confidential Information, but in no event less than a reasonable degree of care.

3.2 The Recipient may only use the Confidential Information for the Purpose and shall not use the Confidential Information for any other purpose whatsoever.

3.3 The Recipient may disclose the Confidential Information only to its employees, agents, consultants, contractors, and those of its group companies (“**Representatives**”) on a strictly “need-to-know” basis. The Recipient shall ensure that Representatives are bound by obligations no less extensive than those set out in this Agreement. The Recipient shall be liable to the disclosing Party pursuant to the provisions set forth in this Agreement for any breach by its Representatives.

3.4 Confidential Information shall not include information that (a) was known to the Recipient prior to the time of disclosure; (b) was in the public domain prior to the time of execution of this Agreement, or which comes into the public domain through no fault or breach of the Agreement by the Recipient; or (c) has been independently developed by the Recipient without reference to or use of the Confidential Information.

4 Right to Notice. In the event the Recipient receives a request to release Confidential Information pursuant to a court order, subpoena, or other governmental authority, Recipient shall provide the disclosing Party with prompt written notice in order to permit the disclosing Party to either consent to the disclosure or seek a protective order or other appropriate remedy. Recipient shall limit the disclosure of Confidential Information to the greatest extent possible under the circumstances.

5 Return of Confidential Information. Upon the disclosing Party’s request, the Recipient shall promptly return or, at the disclosing Party’s

option destroys all documents containing Confidential Information and any other documents, specifications, data or information of any nature whatsoever based on or relating to Confidential Information. Upon the request of the disclosing Party, an officer of the Recipient shall promptly certify in writing that such destruction has been completed.

6 No License. Any and all rights to the Confidential Information, including but not limited to copyright, trademarks, patents and any other intellectual property rights, shall remain the property of the disclosing Party. No license to or in any of the Confidential Information is hereby granted directly or indirectly or implied in any way whatsoever. This Agreement imposes no obligation on either Party to proceed with any business transaction or agreement and does not create any agency or partnership of any kind between the Parties.

7 Term. Either Party may terminate this Agreement on thirty (30) days’ written notice. The Parties’ confidentiality obligations will survive for an additional one (1) years after the termination of this Agreement, provided that any trade secrets must be maintained confidentially so long as such information constitutes a trade secret. The term of the agreement is for 12 month from date of signature.

8 Disclaimer. The disclosing Party discloses the Confidential Information without any warranty as to the correctness or completeness of the Confidential Information, express or implied, of any kind. The disclosing Party shall not be liable for any costs or damages whatsoever incurred to the Recipient or any third party arising out of the correctness or completeness of the Confidential Information.

9 Amendments; Entire Agreement. Any amendments to this Agreement must be made in writing and signed by both Parties in order to be valid. This Agreement constitutes the entire agreement between the Parties with respect to the Purpose and supersedes all prior oral or written agreements between the Parties.

10 Counterparts; No Assignment. This Agreement may be executed in counterparts, and via facsimile and/or .pdf. Recipient may not assign or transfer this Agreement without the other Party’s written consent, not to be unreasonably withheld.

11 Governing Law. This Agreement shall be governed by and in accordance with the laws of England. Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be determined by arbitration in London in accordance with the ICC Rules in force at the commencement of the arbitration. The number of arbitrators shall be one. The language of the arbitration shall be English.

12 Notices. Any notice hereunder will be effective upon receipt, must be given in writing, and delivered to the other Party at its address given herein and via e-mail.

DATE: [REDACTED]

PARTNER: University of Auckland

ADDRESS: 22 Princes Street, Auckland, New Zealand